CHAPTER 86 Anti-Defection Law

The 52nd Amendment Act of 1985 provided for the disqualification of the members of Parliament and the state legislatures on the ground of defection from one political party to another. For this purpose, it made changes in four Articles[1] of the Constitution and added a new Schedule (the Tenth Schedule) to the Constitution. This act is often referred to as the 'anti-defection law'.

Later, the 91st Amendment Act of 2003 made one change in the provisions of the Tenth Schedule. It omitted an exception provision i.e., disqualification on the ground of defection not to apply in case of a split.

PROVISIONS OF THE ACT

The Tenth Schedule contains the following provisions with respect to the disqualification of members of Parliament and the state legislatures on the ground of defection:

1. Disqualification

Members of Political Parties: A member of a House belonging to any political party becomes disqualified for being a member of the House, (a) if he/she voluntarily gives up his/her membership of such political party; or (b) if he/she votes or abstains from voting in such House contrary to any direction issued by his/her political party without obtaining prior permission of such party and such act has not been condoned by the party within 15 days.

From the above provision it is clear that a member elected on a party ticket should continue in the party and obey the party directions.

Independent Members: An independent member of a House (elected without being set up as a candidate by any political party) becomes disqualified to remain a member of the House if he/she joins any political party after such election.

Nominated Members: A nominated member of a House becomes disqualified for being a member of the House if he/she joins any political party after the expiry of six months from the date on which he/she takes his/her seat in the House. This means that he/she may join any political party within six months of taking his/her seat in the House without inviting this disqualification.



2. Exceptions

The above disqualification on the ground of defection does not apply in the following two cases: